"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."
OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."
(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- **The court encourages remote appearances to save time, reduce costs, and increase public safety.** Go to Check-In Results - Orange County Superior Court and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.

- All hearings are open to the public.

- If you desire a transcript of the proceedings, you **must** provide your court reporter (unless you have a fee waiver and request a court reporter in advance).

- Call the other side. If **everyone** submits to the tentative ruling, call the clerk at **657-622-5231**. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 7/17/2026 10:00 AM

#	Case Name	Tentative
1	**Thomas vs. Synched, LLC 30-2025-01472224-CU-OE-CJC**	**Motion to be Relieved as Counsel of Record** The motion of attorney Scott Shibayama from Vision Law Corporation to be relieved as counsel of record for defendant Synched, LLC is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. OSC re corporate counsel scheduled for 9/10/2026 at 1:30 PM. Defendant, Synched, LLC is a business entity that cannot be self-represented. Defendant, Synched, LLC is ORDERED to substitute new counsel into the case prior to the OSC. Failure to do so will result in the court striking its answer and entering default.

		Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order. Clerk to give notice.
2	**Reyes vs. General Motors, LLC 30-2024-01389233-CU-BC-CJC**	**Motion to Set Aside Dismissal** Plaintiffs Sandra Reyes's and Juan Reyes's motion to set aside the dismissal entered on 9/22/2025 and reinstate case is DENIED. Plaintiffs have not demonstrated counsel's mistake, inadvertence, surprise, or neglect. (Code Civ. Proc., § 473, subd. (b).) Counsel was well aware of the trial date and any "overbooking" was not the result of a mistake but appears to have been scheduled intentionally by counsel. (Baggs Decl., ¶¶ 3, 8.) Plaintiffs have not demonstrated why counsel did not inform the Stanley Mosk Court they were already engaged in a trial in Orange County, nor addressed why both Plaintiffs failed to appear for trial as ordered. Clerk to give notice.
3	**O'Connell vs. Channels 30-2024-01428559-CU-FR-CJC**	**Motion to Continue Discovery** The Motion to Continue Discovery by Plaintiffs Kevin O'Connell, Credit 1 Assist LLC, and Guru Finance Group, LLC is GRANTED. The Court has considered Defendants' opposition, which was untimely filed and served as a result of the parties' attempts to stay litigation while attempting dispute resolution. Plaintiffs have shown a short extension of the discovery cutoff to 8/10/2026 is appropriate in order to complete discovery which was not completed by prior counsel, and Defendants have not demonstrated prejudice because trial has been continued to 10/23/2026. (Code Civ. Proc., § 2024.050.) Clerk to give notice.
4	**Morris vs. Newman**	**Motion to Appoint Receiver and Issuance of Preliminary Injunction**

	30-2025-01508723-CU-OR-CJC	Plaintiff Paula Sue Morris's Motion to Appoint Receiver and Issuance of Preliminary Injunction is CONTINUED to 8/14/2026 at 10:00 AM. The court currently intends to appoint a receiver if the parties cannot reach an agreement to market the property for sale. No later than five court days before the continued hearing date, each side may submit a supplemental brief, not to exceed five pages, regarding the status of the property and whether a receivership remains necessary. On 4/17/2026, plaintiff's counsel, Stephen J. Thomas, filed a declaration and certification regarding use of generative artificial intelligence declaring he utilized a generative artificial intelligence research tool provided by LexisNexis and he reviewed and certified each citation had been independently verified for accuracy. (ROA 56.) As part of defendants' amended opposition, defendants argue plaintiff's cited authorities do not contain the propositions attached to them, including *Baron v. Fire Ins. Exchange* (2007) 154 Cal.App.4th 1184; *O'Flaherty v. Belgum* (2004) 115 Cal.App.4th 1044; *Gold v. Gold* (2003) 114 Cal.App.4th 791; *Canada Life Assur. Co. v. LaPeter* (9th Cir. 2009) 563 F.3d 837; *People v Riverside University* (1973) 35 Cal.App.3d 572; and *County of Sonoma v. Quail* (2020) 56 Cal.App.5th 657. (ROA 77, pp. 12-13.) Plaintiff's reply is silent on the issue. "To state the obvious, it is a fundamental duty of attorneys to *read* the legal authorities they cite in appellate briefs or any other court filings to determine that the authorities stand for the propositions for which they are cited." (*Noland v. Land of the Free, L.P.* (2025) 114 Cal.App.5th 426, 445.) It appears counsel has violated Department C31's standing order re: Artificial Intelligence, Business & Professions Code section 6068, subdivision (d), State Bar Rules of Professional Conduct, rules 3.3(a)(1) and (2), and California Rules of Court, rule 8.1115(a). On the court's own motion, the court sets an OSC re sanctions against attorney Stephen J. Thomas for use of fabricated quotations and/or erroneous statements of law,

		for 8/20/2026 at 1:30 PM. (Cal. Rules of Court, rule 2.30; Code Civ. Proc., § 177.5.) The court ORDERS attorney Stephen J. Thomas to personally appear at the OSC. A Zoom appearance will not be permitted. Clerk to give notice.
5	**Security National Guaranty, Inc. vs. Makhijani 30-2023-01347034-CU-BC-CJC**	**Motion to Quash Subpoena, or in the Alternative, for a Protective Order** Defendant Nano Banc's Motion to Quash or alternatively for Protective Order is DENIED. On 3/11/26, plaintiff Security National Security, Inc. and nominal defendant SNG Evariste, LLC now known as New Dawn Equity Partners LLC ("Judgment Creditor") served a subpoena on defendant Nano Banc requesting nine categories of documents. Taken together, they seek all documents and communications, in whatever form, related to any account controlled or associated with defendant Mahender Makhijani, the opening or closing of any account controlled or associated with Makhijani, monies paid to or by Makhijani, the transfer of monies by Makhijani, stock certificates or shares issued to Makhijani, real estate or real property holdings and investments for Makhijani, and cashier's checks obtained by Makhijani. Nano Banc moves to quash the subpoena or, alternatively, for a protective order limiting the scope of the document requests to accounts and assets in Makhijani's name only, on the grounds that the document requests are (1) overbroad and lack particularity, and (2) violate third party privacy rights. Nano Banc argues the document requests must be narrowly tailored to accounts and assets in Makhijani's name only or assets or debts owed to Makhijani. Nano Banc is incorrect. "[W]hen a subpoena duces tecum is tethered to [a judgment debtor] examination under [Code of Civil Procedure] section 708.110, the scope of discoverable documents must be broadly construed to include matters relating to the property and business affairs of the judgment debtor." (*Shrewsbury Mgmt., Inc. v. Sup.Ct. (Boucher)* (2019) 32 Cal.App.5th 1213, 1228 [cleaned up].) Here, the subpoena is "tethered" to Makhijani's judgment debtor examination under section 708.110, which is set for 8/28/2026. Accordingly, the subpoena's scope must

		be broadly construed to include matters relating to Makhijani's property and business affairs. Judgment Creditor has established good cause for the broad production. Evidence establishes Makhijani exercised control over entities holding accounts at Nano Banc. During meet-and-confer discussions, Nano Banc's counsel conceded Makhijani was an authorized signatory on accounts at the bank and held ownership interests in entities that maintained accounts there. Finally, a recently unsealed federal criminal complaint charging Makhijani with bank fraud corroborates allegations Makhijani routinely holds and conceals his interests not in his own name, but through entities and nominees that he controls—making it likely that records relating to such interests are held at Nano Banc, even if the records are not held in Makhijani's name only. In its reply, Nano Banc argues Judgment Creditor's attempt to tether the subpoena to Makhijani's examination is a pretextual justification because Makhijani is currently incarcerated and there is virtually no chance he will be examined. Nano Banc also argues even if Makhijani appears at the examination, he will likely plead the Fifth like he did at trial. These arguments lack merit. Judgment Creditor issued the subpoena less than two weeks after the court entered the order for Makhijani's debtor's examination. This timing indicates the subpoena is tethered to the examination. Further, there is no evidence Judgment Creditor knew or believed Makhijani likely would not appear for the examination when it issued the subpoena. Nano Banc's speculation Makhijani likely will not appear or, if he does appear, will plead the Fifth, does not justify denying Judgment Creditor's right to permissible discovery to enforce the judgment. <u>Third party privacy rights</u> "The party asserting a privacy right must establish a legally protected privacy interest, and objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citations.] The party seeking information may raise in response whatever legitimate and important countervailing interest disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interest or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations." (*Williams v.*

		Sup. Ct. (2017) 3 Cal.5th 531, 552.) "Only obvious invasions of interests fundamental to personal autonomy must be supported by a compelling interest." (*Id.* at p. 557.) Nano Banc asserts a legally protected privacy interest in protecting its customers' financial information that may be disclosed as a result of the subpoena. "[T]he right of privacy extends to one's confidential financial affairs as well as to the details of one's personal life . . .[T]he customer of a bank expects that the documents, such as checks, which he transmits to the bank in the course of his business operations, will remain private, and that such an expectation is reasonable. A bank customer's reasonable expectation is that, absent compulsion by legal process, the matters he reveals to the bank will be utilized by the bank only for internal banking purposes." (*Valley Bank of Nevada v. Superior Court* (1975) 15 Cal.3d 652, 656-657 [cleaned up] (*Valley Bank*).) In *Valley Bank*, a case cited by Nano Banc, the California Supreme Court balanced similar competing interests in the context of pending litigation and concluded "that before confidential customer information may be disclosed in the course of civil discovery proceedings, the bank must take reasonable steps to notify its customer of the pendency and nature of the proceedings and to afford the customer a fair opportunity to assert his interests by objecting to disclosure, by seeking an appropriate protective order, or by instituting other legal proceedings to limit the scope or nature of the matters sought to be discovered . . . [I]n evaluating claims for protection of bank customers, the trial courts are vested with the same discretion which they generally exercise in passing upon other claims of confidentiality." (*Valley Bank, supra,* 15 Cal.3d at p. 658.) The considerations affecting the trial court's exercise of its discretion include "the purpose of the information sought, the effect that disclosure will have on the parties and on the trial, the nature of the objections urged by the party resisting disclosure, and ability of the court to make an alternative order which may grant partial disclosure, disclosure in another form, or disclosure only in the event that the party seeking the information undertakes certain specified burdens which appear just under the circumstances." (*Ibid*.) Nano Banc made no effort to notify its customers of the subpoena and the nature of these proceedings.

		Moreover, the consumer notice requirements do not apply where a records custodian is required to delete all information that would identify the consumer whose records are sought. (Code Civ. Proc., § 1985.3, subds. (b), (i); see *Snibbe v. Sup.Ct. (Gilbert)*(2014) 224 Cal.App.4th 184 [notice to patients not required prior to disclosure of redacted postoperative orders].) During the meet and confer process, Judgment Creditor offered to allow Nano Banc to redact information related specifically to any third-party owners of the accounts to protect their privacy interests. Nano Banc declined. In its reply, Nano Banc argues redaction cannot address the privacy issues because this is not a case where discreet pieces of financial information can simply be redacted. Nano Banc states Judgment Creditor offers no workable method for redacting the types of records it seeks. This argument is unpersuasive. Nano Banc is ORDERED to redact the documents responsive to the subpoena and produce the redacted documents within 20 days. Clerk to give notice.
6	**Hazard vs. General Motors, LLC** **30-2025-01459635-CU-BC-CJC**	**Motion for Attorney Fees and Costs** Plaintiff Reed Hazard's Motion for Attorneys' Fees, Costs, and Expenses is GRANTED in the reduced amount of $18,259.40. Plaintiffs seek lodestar fees of $26,171.00 and costs of $2,442.69 for a total request of $28,613.69. The court declines to reduce fees for plaintiff's fraud claims, pre-engagement work, initial disclosures, redundant and excessive client communications, clerical and administrative tasks, and travel time. The court finds 11.7 hours is excessive for fees in connection with the fee motion and reduces the fees by 8.7 hours ($4,900.00). The court also reduces hours by 6.4 for a motion to tax costs never filed ($4,448.00.) The court declines to reduce costs for filing and motion fees and jury fees. The court taxes costs of $41.20 for service of process; $550.00 for court reporter fees; $97.45 for electronic filing fees; $125.14 for mileage and parking; and $192.50 for mediation, on grounds plaintiff provided no

		documentation to rebut defendant's challenge (total $1,006.29). The court awards $16,823.00 in attorney fees and $1,436.40 in costs. Clerk to give notice.
7	**Melendez vs. General Motors, LLC 30-2024-01413483-CU-BC-CJC**	**Motion for Attorney Fees and Costs** Off calendar. Case dismissed.
8	**Casserly vs. Kavrell 30-2025-01471660-CU-OR-CJC**	**Demurrer to First Amended Complaint** Off calendar. Case settled.
9	**Nguyen vs. Ma 30-2025-01518657-CU-OR-CJC**	**Demurrer to First Amended Complaint** Defendant Lance Ma, an individual and as administrator of the Estate of Victor Luu's Demurrer to Plaintiff Tuan Nguyen's First Amended Complaint is CONTINUED to 8/14/2026. Defendant's counsel did not sufficiently meet and confer prior to filing the demurrer. An in-person, telephonic or video conference meet and confer is required. (Code Civ. Proc., § 430.41, subd. (a).) Defendant is ORDERED to file a new declaration 5 court days prior to the continued hearing. (*Id*., subd. (a)(2).) Clerk to give notice.
10	**Gomez vs. State Farm General Insurance Company 30-2026-01549079-CU-IC-CJC**	**Demurrer to Complaint and Motion to Strike Complaint** Defendant State Farm General Insurance Company's unopposed Demurrer to the Complaint is SUSTAINED with 10 days leave to amend. The unopposed Motion to Strike is DENIED as moot. Defendant demurs to the second cause of action for money damages for tortious bad faith. A cause of action for bad faith "involves something beyond breach of the contractual duty itself" and requires unfair dealing rather than mistaken judgment. (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1395.) "If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other

		relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated." (*Ibid.*) Here, the facts alleged in the complaint amount to nothing more than a dispute over coverage, not unreasonable conduct. Defendant seeks to strike punitive damages allegations and prayer for relief from the complaint. Plaintiffs requested punitive damages in connection with the second cause of action for money damages for tortious bad faith. Because the demurrer to the second cause of action is sustained, the motion to strike is moot. If Plaintiffs choose to amend, Plaintiffs are ORDERED to file a red-line and clean copy of the amended complaint. Clerk to give notice.
11	**Sadeghi vs. Quality Auto Specialists, Inc. 30-2025-01527489-CU-PO-CJC**	**Special Motion to Strike the Second, Third, and Fourth Causes of Action** Cross-Defendant Mohammed Sadeghi's unopposed special motion to strike (Anti-SLAPP) Motion is GRANTED. The second, third, and fourth causes of action in QAS Inc.'s Cross-Complaint are stricken. Clerk to give notice.
12	**Gutierrez vs. 400 Baker, LLC 30-2024-01437683-CU-PO-CJC**	**Motion for Summary Judgment and/or Summary Adjudication** Defendants 400 Baker, LLC and Guichet Properties, LLC's Motion for Summary Judgment or, in the alternative Summary Adjudication as to plaintiff Francisco Lara Gutierrez's First Amended Complaint is DENIED. Plaintiff's Evidentiary Objections to Declaration of Michael Vredenburgh are OVERRULED as to Objection Nos. 1-6, 8 and SUSTAINED as to No. 7. The First Amended Complaint ("FAC") alleges causes of action for Negligence and Premises Liability against Defendants. A triable issue of material fact exists as to whether Defendants had constructive knowledge of a dangerous condition of the stairs based on Plaintiff and his wife's complaints of "unstable," "cracking," and "squeaking" stairs. (UMF Nos. 10, 11, 15, 16.) Moving Defendants to give notice.